

property, and as a consequence to vest it in a trustee (*h*). But now municipal corporations are themselves trustees of their property, for the public purposes prescribed by the Municipal Corporations Act, and are debarred from alienating their real (*i*) or personal estate (*j*) without the consent of the Lords of the Treasury. A corporation, however, not included in the schedules to the Act still retains its power of alienation (*k*).

4. **Feme covert.** — A *Feme Covert* may create a trust of *real* estate, but, unless it be property settled to her separate use, it must be done with the consent of her husband, and there must be all the attendant formalities required by the

Fines and Recoveries Act, 3 & 4 W. 4, c. 74 [as modified by the Conveyancing Act, 1882, 45 & 46 \* Vict.

c. 39, s. 7. But under the Married Women's Property Act, 1882 (*a*), a woman married since the 31st Dec. 1882, and also a woman married before that date as to property acquired by her after that date, can create a trust of real estate without the concurrence of her husband and without the formalities of the Fines and Recoveries Act.<sup>1</sup>]

5. **20 & 21 Vict. c. 57.** — As to her *choses en action*, by a recent statute (*b*) (commonly called Malins's Act), a feme covert is enabled with the concurrence of her husband, and on being separately examined in the manner prescribed by the Fines and Recoveries Act, to dispose by deed of any *future or reversionary interest* created by an *instrument made after the 31st December, 1857*, and as to which interest her power of anticipation is not specially restricted; and is also authorized to release or extinguish her right or equity to a settlement out of personal estate to which she is entitled *in possession* under such *instrument* as aforesaid. But any per-

(*h*) Colchester v. Lowten, 1 V. & B. 226.

(*i*) 5 & 6 W. 4. c. 76, s. 94.

(*j*) Attorney-General v. Aspinwall, 2 M. & Cr. 613; Attorney-General v. Wilton, Cr. & Ph. 1.

(*k*) Evan v. The Corporation of Avon, 29 Beav. 144.

[(*a*) 45 & 46 Vict. c. 75, ss. 2, 5.]

(*b*) 20 & 21 Vict. c. 57.

<sup>1</sup> Married women in America may convey their property to trustees. Young v. Graff, 28 Ill. 20; Durant v. Ritchie, 4 Mason, 45; 1 Redf. on Wills, 21-28; Perry on Trusts, § 32.